

Santosh Kumar Gupta v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 31 August 2022 · Writ-C No. 24198 of 2022 · Writ-C No. 24198 of 2022 · **Writ disposed; Executive Engineer directed to decide the 14.06.2022 representation under clause 6.8 within six weeks, without merits.**

HEADNOTE

On a writ seeking consideration of a representation dated 14.06.2022, the Division Bench held that the Executive Engineer, Electricity Distribution Division, Purvanchal Vidyut Vitran Nigam, Jaunpur is the competent authority under clause 6.8 of the Electricity Supply Code, 2005. Without entering the merits, the Court disposed of the petition by directing that authority to decide the representation preferably within six weeks of receipt of the order.

FACTUAL SUMMARY

Santosh Kumar Gupta invoked the Allahabad High Court's writ jurisdiction seeking a direction on his representation dated 14 June 2022 relating to an electricity supply issue. The respondents were the State of Uttar Pradesh and the Executive Engineer, Electricity Distribution Division, Purvanchal Vidyut Vitran Nigam, Jaunpur. Counsel for the distribution licensee appeared. The Court treated the prayer as innocuous and identified that Executive Engineer as the competent authority under clause 6.8 of the Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

competent-authority-representation

HOLDING

The Executive Engineer, Electricity Distribution Division, Purvanchal Vidyut Vitran Nigam, Jaunpur is the competent authority under clause 6.8 of the Electricity Supply Code, 2005 for the issue raised in the petitioner's representation dated 14.06.2022. The writ was disposed of without examining the merits, with a direction that the said authority decide that representation preferably within six weeks of receipt of the order.

¶ 1

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 The Court treated clause 6.8 as the statutory forum and disposed of the writ by directing the Executive Engineer to decide the pending representation rather than adjudicating the claim on merits. ¶ 1

para-6.8-objection-alternate-remedy The representation dated 14.06.2022 was left to the clause 6.8 competent authority (the Executive Engineer, EDD, PuVVNL, Jaunpur) for decision within a fixed time. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE REPRESENTATION DATED 14.06.2022

The Court expressly declined to enter into the merits of the petitioner's claim. ¶ 1